

24STLC08020 24STLC08020

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Case Number: 24STLC08020 Hearing Date: June 29, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff David Velazquez Gonzalez's Motion for Leave to Amend to Add Punitive Damages and to Reclassify to Unlimited Jurisdiction is denied.

Analysis:

Plaintiff David Velazquez Gonzalez ("Plaintiff") brought this action for motor vehicle negligence against Defendant Joshua Garcia ("Defendant") on November 4, 2024. Defendant filed an Answer on December 10, 2024. On March 24, 2026, the Court granted Plaintiff's Motion to Continue Trial Date and All Related Dates. (Minute Order, 03/24/26.) The Court continued the trial to August 25, 2026. (Ibid.)

On March 25, 2026, Plaintiff filed the instant Motion for Leave to Amend to Add Punitive Damages and to Reclassify to Unlimited Jurisdiction. Defendant filed an opposition on June 15, 2026, and Plaintiff replied on June 22, 2026.

Discussion

The request for leave to amend is brought pursuant to Code of Civil Procedure section 473, subdivision (a), which provides that "[t]he court may, in furtherance of justice and on any terms as may be proper, allow a party to amend any pleading..." (Code Civ. Proc., § 473, subd. (a)(1).) A motion for leave to amend a pleading must also comply with the procedural requirements of California Rules of Court, Rule 3.1324, which requires a supporting declaration to set forth explicitly what allegations are to be added

and where, and when the new evidence was discovered warranting the amendment and why the amendment was not made earlier. The motion must also include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines of the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (Cal. Rules of Court, Rule 3.1324, subds. (a), (b).)

The Motion includes a copy of the proposed First Amended Complaint and a declaration specifying the effect, necessity and propriety of the punitive damages request. Specifically, Plaintiff's counsel declares that evidence supporting punitive damages came to light during Defendant's deposition, taken on February 23, 2026. (Motion, Michael Decl., ¶¶4-5 and Exh. A.) It is also Defendant's position that adding the request for punitive damages would take this case out of the Limited Civil Court's jurisdiction. (Id. at ¶11.) However, the Motion does not specify the allegations that would be added according to their page and line numbers, as required by the Rule.

With respect to an amendment adding punitive damages, the court must decide whether a prima facie case for such damages exists. (Looney v. Superior Court (1993) 16 Cal.App.4th 521, 539-540.) The relevant evidence on this Motion is Defendant's deposition testimony. Therein, Defendant testified that he was "dozing off," "feeling sleepy." (Motion, Michael Decl., p. 21:18-19.) Upon further questioning, Defendant clarified that he did not fall asleep, but felt tired. (Id. at p. 22:1-4.) He did not feel his head drooping or nodding. (Opp., Shin Decl., Exh. 2 at p. 27:10-12.) He reached over to the floor area of the passenger seat to get a Gatorade and as he was getting up, the crash occurred. (Motion, Michael Decl., Exh. A, p. 21:19-22.) Defendant went to sleep the previous night at 8:30 to 9:00 pm and woke up at 3:30 am. (Id. at p. 22:5-10.) Defendant did not feel tired when he woke up or at the start of the drive; he started to feel tired about an hour into the drive. (Opp., Shin Decl., Exh. 2, pp. 22:11-14, 26:22-27:2.) Finally, Defendant testified that the accident occurred two to three minutes after he started to feel tired, which was about an hour and ten to twenty minutes from the start of the drive. (Id. at pp. 22:11-13, 22:24-23:2, 26:22-27:9.)

The Court does not find that this evidence supports a prima facie case of punitive damages. Punitive damages are authorized by Civil Code section 3294 in non-contract cases "where the defendant has been guilty of oppression, fraud, or malice, express or implied"

(Civil Code, § 3294, subd. (a).) Malice means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (Civil Code, § 3294, subd. (c)(1).) Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (Civil Code, § 3294, subd. (c)(2).) The Motion proffers cases, without pincite or discussion of relevant facts, purportedly for the proposition that driving while fatigued or distracted constitutes malice sufficient to support punitive damages. (Mot. at 4.) Neither stands for that proposition.

In *Taylor v. Superior Court* (1979) 24 Cal.3d 890, the California Supreme Court held that "operating a motor vehicle while intoxicated may constitute an act of 'malice' under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences." (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 892.) In that case, the defendant was an alcoholic who was well aware of his condition, of his history of driving while intoxicated, and of the dangerousness of his driving while intoxicated. (*Id.* at 893.) The history of the defendant's conduct included being arrested and convicted for drunken driving on numerous prior occasions; completing probation which followed a drunk driving conviction, one of the conditions of which was that he refrain from driving for at least six hours after consuming any alcoholic beverage; and at the time of the accident facing an additional pending criminal drunk driving charge. (*Ibid.*) In *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, the conduct alleged to support the punitive damages request, included that defendant was "driving a 1967 Ferrari automobile; that he made a righthand turn from Del Prado Street without stopping at the stop sign controlling traffic 'and proceeded in an easterly direction on said Del Obispo Street, zigzagging in and out of traffic, in a designated 35 mile per hour zone, and gaining speed until he was traveling in excess of 65 miles per hour'" (*Dawes*, 111 Cal.App.3d at 86.) The complaint in *Dawes* also alleged that immediately after the accident, the defendant lied to police about who was driver. (*Id.* at 88-89.)

The conduct described in Defendant's deposition is materially distinguishable. Defendant testified that he felt sleepy in the two to three minutes before the crash, and that he leaned down to the passenger side foot well to get a bottled drink. These facts do not show despicable conduct carried on with a willful and conscious disregard of other people's safety. "Despicable conduct" is conduct that rises to the level of criminality, or arises outrage of the kind associated with

crime. (American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton
(2002) 96 Cal. App. 4th 1017, 1050.)

Based on the foregoing, Plaintiff's request for leave to
amend the Complaint to add punitive damages allegations is denied. As this is
also the underlying basis for the request to reclassify the action,
reclassification is also denied.

Conclusion

Plaintiff David Velazquez Gonzalez's Motion for Leave to Amend to Add
Punitive Damages and to Reclassify to Unlimited Jurisdiction is denied.

Moving party to give notice.